

2020 SCC OnLine All 538

In the High Court of Allahabad at Lucknow
(BEFORE SAURABH SHYAM SHAMSHERY, J.)

Abdul Ajij ... Petitioner;

Versus

State of U.P. and Others ... Respondents.

WRIT - C No. - 5708 of 2020

Decided on May 7, 2020

Advocates who appeared in this case :

Gaurav Pundir, Counsel for the Petitioner;

C.S.C., Chandan Agarwal, Counsel for the Respondent.

JUDGMENT

1. This writ petition is taken up in the chamber as an urgent one during the lock-down period due to COVID 19 Pandemic.

2. Perused the records.

3. The petitioner is aggrieved by the order dated 02.12.2019 passed under Section 127 of the U.P. Electricity Act, 2003, whereby the appeal filed by the petitioner was rejected on the ground of non depositing of half of the assessed amount as prescribed under Section 127 (2) of the Act, 2003.

4. The contention of learned counsel for the petitioner is that he has deposited the amount as prescribed under the Uttar Pradesh Electricity Supply Code, 2005.

5. There is no need to issue notice to the respondents as they are represented by their respective counsel.

6. List the matter on 02.7.2020.

7. Meanwhile, counter and rejoinder affidavits may be filed.

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